

Republic of the Philippines
SUPREME COURT
Manila
EN BANC

BASIC LEGAL AND JUDICIAL ETHICS (BLJE)
CODE OF PROFESSIONAL RESPONSIBILITY AND
ACCOUNTABILITY
(CPRA)

A.M. NO. 22-09-01-SC | COMPLETE CANONS & SECTIONS COMPENDIUM
(Featuring Comprehensive Codification of Responsible Use of Social Media)

Promulgated: April 11, 2023 | **Effectivity:** May 29, 2023 (15 days after publication on May 14, 2023)
Governing Resolution: Supreme Court En Banc Resolution in A.M. No. 22-09-01-SC
Repealing Effect: Repeals and supersedes the 1988 Code of Professional Responsibility (CPR) and Chapter 1, 2, and 8 of the Rules of Court.
Key Architectural Pillars: Independence, Propriety (with Social Media Ethics), Fidelity, Competence and Diligence, Equality, and Accountability.

THE REVISED LAWYER'S OATH (CPRA A.M. NO. 22-09-01-SC)

"I, [Name], do solemnly swear that I accept the honor, privilege, duty, and responsibility of practicing law in the Philippines as an officer of the court, in the interest of our people.

I declare fealty to the Constitution of the Republic of the Philippines.

In so doing, I shall work towards promoting the rule of law in a regime of truth, justice, freedom, love, equality, and peace.

I shall conscientiously and courageously work for justice as well as safeguard the rights and meaningful freedoms of all persons, identities, and communities, and ensure greater and equitable access to justice.

I shall do no falsehood, nor admit the doing of any in court, nor tolerate the same.

I shall conduct myself with dignity and civility, treat all persons with respect, fairness, and temperance, and maintain the appearance of propriety in both my professional and personal dealings.

I shall safeguard the client's confidence with absolute fidelity, and never betray their trust nor exploit their vulnerability.

I shall advance the cause of my client with competence and diligence, without delaying any man for money or malice, and shall be accountable for my actions.

I impose upon myself these voluntary obligations without any mental reservation or purpose of evasion. So help me God."

SECTION 1: MASTER CANONS & SECTIONS OVERVIEW MATRIX

CANON	CORE MANDATE & VALUES	SECTION RANGE & KEY TOPICS
Canon I INDEPENDENCE	A lawyer shall maintain independence in the discharge of professional duties, free from improper influence, pressure, or interference.	Sections 1–5 • Sec. 1: Independent, accessible, efficient legal service • Sec. 2: Merit-based practice • Sec. 3: Freedom from improper considerations • Sec. 4: Non-interference by a lawyer • Sec. 5: Discretion in procedure & strategy
Canon II PROPRIETY (With Social Media)	A lawyer shall act with propriety and maintain the appearance of propriety in personal and professional dealings, observing honesty, respect, and courtesy.	Sections 1–44 • Sec. 1–5: Proper conduct, gender-fair language, safe environment • Sec. 6–12: Decorum, evidence integrity, reporting fraud • Sec. 13–20: No baseless accusations, Sub Judice Rule (Sec. 19) • Sec. 21–35: Gift ban, forum shopping, government lawyers • Sec. 36–44: Responsible Use of Social Media
Canon III FIDELITY	A lawyer shall act with absolute fidelity, loyalty, and devotion to the client's cause, safeguarding client confidences with inviolate trust.	Sections 1–56 • Sec. 1–12: Practice of law, fiduciary nature, client updates • Sec. 13–22: Conflict of Interest tests & rules • Sec. 23–34: Privileged Communication & Confidences • Sec. 35–40: Limited Legal Services • Sec. 41–48: Client Funds & Property Accounting • Sec. 49–54: Attorney's Fees & Liens • Sec. 55–56: Termination & Withdrawal
Canon IV COMPETENCE & DILIGENCE	A lawyer shall provide competent, efficient, and conscientious legal services with promptness and devotion.	Sections 1–10 • Sec. 1–4: Standard of competence, collaboration, promptness • Sec. 5–7: Case merits assessment, ban on dilatory extensions • Sec. 8: Lifelong learning & MCLE • Sec. 9: Practice of Law with Technology & AI

		• Sec. 10: Concurrent practice of professions
Canon V EQUALITY	A lawyer shall treat all persons with equality, fairness, and respect, ensuring non-discrimination and equal access to justice.	Sections 1–4 • Sec. 1: Non-discrimination • Sec. 2: Standard of service for vulnerable persons • Sec. 3: Indigent persons and free legal aid • Sec. 4: Standard of service regardless of remuneration
Canon VI ACCOUNTABILITY	A lawyer shall be accountable to society, the courts, the legal profession, and the client for all ethical obligations and professional actions.	Sections 1–53 • Sec. 1–32: Sui generis nature, procedure, Substantial Evidence quantum • Sec. 33–37: Classification of Offenses (Serious, Less Serious, Light) & Sanctions • Sec. 38–41: Modifying circumstances • Sec. 42–53: Fines, execution, Judicial Clemency guidelines

SECTION 2: COMPLETE CODAL PROVISIONS OF THE CPRA

CANON I: INDEPENDENCE

Core Principle: Mandate: A lawyer shall maintain independence in the discharge of professional duties, free from improper influence, pressure, or interference, and shall uphold the rule of law without compromise.

Section 1. Independent, accessible, efficient, and effective legal service. A lawyer shall make legal services accessible in an efficient and effective manner. In doing so, the lawyer shall maintain independence, act with integrity, and ensure the efficient and effective delivery of justice.

Section 2. Merit-based practice. A lawyer shall rely solely on the merits of a cause and shall not exert, or give the appearance of, any influence on, nor undermine the authority of, the court, tribunal, or other government agency, or its proceedings.

Section 3. Freedom from improper considerations and external influences. A lawyer shall not be influenced by dishonest or immoral considerations, external influences, or pressure when advocating for a client’s cause.

Section 4. Non-interference by a lawyer. Unless authorized by law or a court, a lawyer shall not assist or cause a branch, agency, office, or officer of the government to interfere in any matter before any court, tribunal, or other government agency.

Section 5. Lawyer’s discretion in procedure and strategy. A lawyer shall have the discretion to determine the procedural and strategic steps to be taken in the handling of the cause, but shall consult the client on matters that affect the substantive rights of the client.

CANON II: PROPRIETY

Core Principle: Mandate: A lawyer shall, at all times, act with propriety and maintain the appearance of propriety in personal and professional dealings, observe honesty, respect, and courtesy, and uphold the dignity of the legal profession in accordance with the highest standards of morality and ethics.

Section 1. Proper conduct. A lawyer shall not engage in unlawful, dishonest, immoral, or deceitful conduct.

Section 2. Dignified conduct. A lawyer shall respect the law, the courts, tribunals, and other government agencies, their officials, employees, and processes, and act with courtesy, civility, fairness, and candor towards fellow members of the bar. A lawyer shall not engage in conduct that adversely reflects on one's fitness to practice law, nor behave in a scandalous manner, whether in public or private life, to the discredit of the legal profession.

Section 3. Safe environment; avoid all forms of abuse or harassment. A lawyer shall not commit any form of physical, sexual, psychological, or economic abuse or violence against another person, and shall not create an unsafe or hostile environment.

Section 4. Use of dignified, gender-fair, and child- and culturally-sensitive language. A lawyer shall use only dignified, gender-fair, child- and culturally-sensitive language in all personal and professional dealings. A lawyer shall not use language that is abusive, intemperate, offensive, or otherwise improper, whether oral or written.

Section 5. Observance of fairness and obedience. A lawyer shall observe fairness and obedience to the law and court orders in all dealings.

Section 6. Harassing or threatening conduct. A lawyer shall not harass or threaten a fellow lawyer, the latter's client or principal, a witness, or any official or employee of a court, tribunal, or other government agency.

Section 7. Formal decorum and appearance. A lawyer shall observe formal decorum and appropriate attire before all courts, tribunals, and other government agencies.

Section 8. Prohibition against misleading the court, tribunal, or other government agency. A lawyer shall not mislead the court, tribunal, or other government agency, nor knowingly misrepresent any facts, law, or authority.

Section 9. Obstructing access to evidence or altering, destroying, or concealing evidence. A lawyer shall not obstruct access to evidence, nor alter, destroy, or conceal evidence, or assist another person to do so.

Section 10. Conduct in the presentation of a witness. A lawyer shall avoid all forms of impropriety when presenting or confronting a witness, and shall not coach, prompt, or improperly influence a witness.

Section 11. False representations or statements; duty to correct. A lawyer shall not make false representations or statements, and upon discovering that a false representation or statement has been made, shall promptly correct the same.

Section 12. Duty to report dishonest, deceitful, or misleading conduct. A lawyer has a duty to report to the Supreme Court or Integrated Bar of the Philippines (IBP) dishonest, deceitful, or misleading conduct committed by another lawyer.

Section 13. Imputation of misconduct, impropriety, or crime without basis. A lawyer shall not, directly or indirectly, accuse another lawyer of misconduct, impropriety, or crime without factual or legal basis.

Section 14. Remedy for grievances; insinuation of improper motive. A lawyer shall seek redress for grievances against judges, lawyers, or court personnel only through proper legal and administrative channels, and shall not make unfounded insinuations of improper motive.

Section 15. Improper claim of influence or familiarity. A lawyer shall observe propriety in all dealings with officers and personnel of any court, tribunal, or other government agency, and shall not claim or imply influence or familiarity.

Section 16. Duty to report life-threatening situations. A lawyer who learns of a life-threatening situation involving a judge, court employee, lawyer, witness, or litigant shall promptly report the same to law enforcement authorities.

Section 17. Non-solicitation and impermissible advertisement. A lawyer shall not directly or indirectly solicit legal business. Advertisements must be dignified, verifiable, and factual, without being self-laudatory or misleading.

Section 18. Prohibition against self-promotion. A lawyer shall not engage in self-promotion or publicity calculated to attract legal business in relation to a pending or terminated case.

Section 19. Sub-judice rule. A lawyer shall not make any public statement, through any medium including the press and social media, regarding a pending case that has a dangerous tendency to prejudice, influence, or obstruct the administration of justice, or sway public opinion regarding the merits.

Section 20. Disclosure of relationship or connection. A lawyer shall disclose to the court and opposing counsel any familial, business, or close personal relationship with a judge or hearing officer.

Section 21. Prohibition against gift-giving and donations. A lawyer shall not, directly or indirectly, give gifts, donations, or contributions of any value or sort, on any occasion, to any court, tribunal, or government agency, or any of its officers and personnel.

Section 22. No undue advantage of ignorance of the law. A lawyer shall not take undue advantage of a person's lack of knowledge, literacy, or understanding of the law.

Section 23. Instituting multiple cases; forum shopping. A lawyer shall not knowingly engage in, or through gross negligence commit, forum shopping, nor advise a client to file multiple frivolous cases.

Section 24. Encroaching or interfering in another lawyer's engagement. A lawyer shall not directly or indirectly encroach upon or interfere in the professional engagement of another lawyer without proper consent or notice.

Section 25. Professional engagements and firm names. Firm names shall not contain misleading designations. Deceased partners' names may be retained only if indicated as deceased.

Section 26. Practice of law in government service. A lawyer in government service shall discharge duties with integrity, fidelity to public interest, and in compliance with civil service laws.

Section 27. Public prosecutors and duty to do justice. The primary duty of a public prosecutor is not to convict, but to see that justice is done. A prosecutor shall not suppress evidence favorable to the accused.

Section 28. Lawyers in local government units / legislative bodies. Lawyers serving in legislative or local councils shall refrain from practicing law where their official position creates a conflict of interest.

Section 29. Former government lawyers; post-employment restrictions. A former government lawyer shall not accept employment in connection with any matter in which the lawyer intervened while in government service (1-year cooling-off period).

Section 30. Conflict of interest for government lawyers. Lawyers in government service are subject to the same strict conflict of interest rules governing private practitioners.

Section 31. Academic practice. Law professors and deans shall maintain academic integrity and ethical standards in all teaching and publications.

Section 32. Paralegals and non-lawyer personnel. A lawyer shall be responsible for supervising paralegals and staff to ensure compliance with ethical rules.

Section 33. Non-delegation of legal practice. A lawyer shall not delegate to non-lawyers any act that constitutes the practice of law.

Section 34. Maintenance of independence in multidisciplinary practices. A lawyer shall not form a partnership or joint venture with non-lawyers where any of the activities involve the practice of law.

Section 35. Prohibition against fee-splitting with non-lawyers. A lawyer shall not share, divide, or split legal fees with non-lawyers, except in established exceptions (e.g., retirement/death payments to heirs).

RESPONSIBLE USE OF SOCIAL MEDIA (SECTIONS 36 TO 44)

CYBERSPACE ETHICS & SOCIAL MEDIA MANDATE

Sections 36 to 44 of Canon II codify the modern standards of cyber ethics for the Philippine legal profession. The Supreme Court established that privacy settings (e.g., 'Friends Only' or private messaging channels) do not immunize lawyers from administrative discipline. A lawyer's online persona is an indivisible extension of their professional standing.

Section 36. Responsible use of social media. A lawyer shall have the duty to understand the benefits, risks, and ethical implications of using social media and other digital technologies.

Section 37. Online posts. A lawyer shall ensure that his or her online posts, whether made in a public or private account, uphold the dignity of the legal profession, shield it from disrepute, and maintain respect for the law and legal processes.

Section 38. Non-posting of false or unverified statements; prohibition on disinformation. A lawyer shall not knowingly or maliciously post, share, or disseminate false, misleading, or unverified statements, fake news, or disinformation on social media.

Section 39. Prohibition against fraudulent accounts. A lawyer shall not create, maintain, or operate fraudulent, troll, bot, or anonymous accounts for the purpose of evading the law, concealing ethical liability, trolling, or attacking the judiciary, fellow lawyers, or litigants.

Section 40. Non-disclosure of privileged information. A lawyer shall not reveal, directly or indirectly, confidential, sensitive, or privileged information obtained in the course of legal representation through social media posts, stories, vlogs, or comments.

Section 41. Duty to safeguard client confidences. A lawyer shall exercise reasonable care and implement adequate digital security measures to prevent inadvertent disclosure or unauthorized access to client confidences stored on digital platforms, cloud services, or social networks.

Section 42. Prohibition against improper influence through social media. A lawyer shall not use social media to communicate, message, tag, or interact with court officers, judges, or hearing tribunals to influence the outcome of a case, or create the impression of intimacy or special favor.

Section 43. Legal information versus legal advice (Limited Legal Services online). A lawyer may disseminate general legal information through social media or digital platforms. However, when a lawyer provides tailored legal advice on a specific set of facts presented by an online user, a lawyer-client relationship is created (or Limited Legal Service is rendered), subjecting the lawyer to the full duties and liabilities under the CPRA.

Section 44. Online posts that could violate conflict of interest. A lawyer shall exercise prudence and circumspection in posting content, commentary, or reactions on social media to ensure that such posts do not conflict with the interests of existing or prospective clients, or violate duty of loyalty.

CANON III: FIDELITY

Core Principle: Mandate: A lawyer shall act with absolute fidelity, loyalty, and devotion to the client's cause, keep client confidences inviolate, safeguard client funds, and serve as a trustworthy officer of the court.

Sections 1–12: Fiduciary Relationship, Authority & Client Communication • Sec. 1: Practice of law defined as rendition of legal service requiring bar admission.

- Sec. 2: Lawyer-client relationship is of the highest fiduciary character, attaching upon consultation.
- Sec. 3–4: Authority to bind client requires written engagement; appearance requires proper authority.
- Sec. 5–8: Duty to advance client cause without filing frivolous suits; duty to encourage settlement; duty to call client to rectify fraud.
- Sec. 9–11: Strict supervisory liability of senior lawyers over associates, paralegals, and legal staff.
- Sec. 12: Absolute duty to keep client regularly informed of case status within reasonable time.

Sections 13–22: Comprehensive Conflict of Interest Framework • Sec. 13: Absolute prohibition against representing conflicting interests without informed, written consent of all affected parties after full disclosure.

- Sec. 14–16: Direct vs Indirect Conflicts; Concurrent vs Successive representation rules.
- Sec. 17: Prospective Client Information — Duty of confidentiality and conflict rules apply even if engagement is declined (Hilado v. David doctrine).
- Sec. 18: Corporate Representation — A lawyer representing a corporation owes fidelity to the entity, not to individual directors, officers, or majority stockholders.
- Sec. 19: Derivative Suits — Lawyer for corporation cannot represent directors accused of breach of trust.
- Sec. 20–22: Imputed disqualification of law firm partners and associates.

Sections 23–34: Privileged Communication & Inviolable Confidences • Sec. 23: Inviolability of attorney-client privilege spanning oral, written, and electronic communications.

- Sec. 24–27: Perpetual duty surviving termination of engagement and client's death.
- Sec. 28–30: Strict exceptions: (1) Client consent; (2) Prevention of future crime/fraud; (3) Defense of lawyer against client's accusation of malpractice.
- Sec. 31–34: Inadvertent disclosures, metadata, and privileged documents mistakenly received.

Sections 35–40: Limited Legal Services • Sec. 35–37: Pro bono legal clinics, hotline legal aid, brief advice desks.

- Sec. 38–40: Relaxed conflict screening for short-term limited legal services unless known direct conflict exists.

Sections 41–48: Accounting, Client Funds, and Property Management • Sec. 41: Absolute fiduciary duty over client money and property.

- Sec. 42: Strict segregation of funds — Prohibition against commingling client funds with personal/office accounts.
- Sec. 43: Prohibition against borrowing from or lending money to client, except under extraordinary circumstances with written independent counsel advice.
- Sec. 44–48: Immediate accounting, inventory, and prompt turnover of client property upon demand (*Burbe v. Magulta* doctrine).

Sections 49–54: Attorney's Fees, Retainers, and Liens • Sec. 49: Reasonable compensation based on time spent, novelty/difficulty, skill required, and amount involved.

- Sec. 50: Prohibition against unconscionable fees or champertous agreements.
- Sec. 51: Contingency fee agreements must be in writing and subject to court reasonableness review.
- Sec. 52–54: Retaining Lien (passive possession of papers/funds) vs Charging Lien (active lien on favorable judgment).

Sections 55–56: Withdrawal of Appearance & Termination of Engagement • Sec. 55: Good cause for withdrawal (client insists on illegal act, fails to pay agreed fees, or makes representation impossible).

- Sec. 56: Duty upon termination — Prompt turnover of papers, return of unearned retainers, and transition assistance.

CANON IV: COMPETENCE AND DILIGENCE

Core Principle: Mandate: A lawyer shall provide competent, efficient, and conscientious legal services with promptness and devotion, keeping abreast of legal developments and technological advancements.

Section 1. Competent, efficient, and conscientious service. A lawyer shall serve the client with competence, diligence, and devotion, giving warm zeal and full intellectual application to the client's cause.

Section 2. Undertaking legal services & collaborating counsel. A lawyer shall only undertake cases they are qualified to handle. Securing collaborating counsel requires client consent.

Section 3. Diligence and punctuality. A lawyer shall be punctual in all court appearances, client meetings, and submissions.

Section 4. Duty to avoid delays. A lawyer shall not delay any matter for money, malice, or personal convenience.

Section 5. Prompt assessment of case merits. A lawyer shall promptly evaluate the factual and legal basis of a client's claim or defense and advise frankly on prospects of success.

Section 6. Duty to inform client of status. A lawyer shall provide regular updates and copies of all pleadings, notices, and orders to the client.

Section 7. Prohibition against unnecessary requests for extensions. Extensions of time are exceptions, not rights. Lawyers shall avoid filing repeated dilatory motions for extension.

Section 8. Lifelong learning and Mandatory Continuing Legal Education (MCLE). A lawyer shall continuously enhance legal knowledge, comply strictly with MCLE compliance periods, and participate in bar development programs.

Section 9. Practice of law and technology / Artificial Intelligence (AI). A lawyer who uses technology, legal tech software, or Artificial Intelligence (AI) tools remains personally responsible for verifying the accuracy of legal citations, authorities, and generated work. AI cannot replace independent professional judgment.

Section 10. Concurrent practice of other professions. A lawyer engaged in other businesses or professions must maintain clear separation and ensure ethical standards are not compromised.

CANON V: EQUALITY

Core Principle: Mandate: A lawyer shall treat all persons with equality, fairness, and respect, ensuring non-discrimination and advancing equal access to justice for vulnerable and indigent sectors.

Section 1. Non-discrimination in legal representation. A lawyer shall not decline representation solely on the basis of sex, gender, race, religion, ethnicity, social status, sexual orientation, disability, or political belief.

Section 2. Standard of service for vulnerable persons. A lawyer shall observe a heightened standard of care and patience when representing vulnerable persons, including children, victims of violence, persons with disabilities, and senior citizens.

Section 3. Indigent persons and free legal aid. A lawyer shall actively participate in the legal aid program of the Integrated Bar of the Philippines and render free legal services to indigent litigants.

Section 4. Standard of service regardless of remuneration. A lawyer owes the exact same high degree of competence, diligence, and fidelity to a non-paying or indigent client as to a high-paying corporate client.

CANON VI: ACCOUNTABILITY

Core Principle: Mandate: A lawyer shall be accountable to society, the courts, the legal profession, and the client for all ethical obligations and professional actions.

Sections 1–10: Nature of Disciplinary Proceedings & Institution • Sec. 1: Disciplinary proceedings are sui generis — Neither purely civil nor purely criminal; their purpose is to protect the court, public, and bar integrity.

- Sec. 2–3: Instituted motu proprio by the Supreme Court, or through a verified complaint filed with the SC or IBP Commission on Bar Discipline (CBD).
- Sec. 4–10: Quantum of Proof: The required quantum of proof in administrative disciplinary cases against lawyers is SUBSTANTIAL EVIDENCE (that amount of relevant evidence which a reasonable mind might accept as adequate to support a conclusion).

Sections 33–35: Classification of Offenses • Sec. 33: SERIOUS OFFENSES:

1. Gross misconduct;
2. Serious dishonesty, fraud, or deceit;
3. Bribery or corruption;
4. Misappropriation of client funds or property;
5. Gross negligence resulting in client's loss of cause or day in court;
6. Conviction of a crime involving moral turpitude;
7. Physical, sexual, or psychological abuse, harassment, or gender-based violence;
8. Grossly immoral conduct;
9. Willful violation of court orders or direct contempt.

• Sec. 34: LESS SERIOUS OFFENSES:

1. Simple misconduct without flagrant corruption;
2. Simple negligence without loss of day in court;
3. Unwarranted delay in filing pleadings;
4. Violation of IBP or Supreme Court administrative rules;
5. Failure to comply with MCLE requirements;
6. Improper advertising or unauthorized solicitation.

• Sec. 35: LIGHT OFFENSES:

1. Non-payment of IBP dues;
2. Use of intemperate or vulgar language in personal dealings;
3. Fraternizing with court personnel with pending cases;
4. Minor infractions of procedural and decorum rules.

Sections 37–41: Sanctions and Modifying Circumstances • Sec. 37: Sanctions Matrix:

- For Serious Offenses: Disbarment, suspension from practice of law for 1 to 5 years, or fine exceeding ₱100,000.00 up to ₱500,000.00 (or both).
- For Less Serious Offenses: Suspension for 1 month to 1 year, or fine of ₱35,000.00 to ₱100,000.00 (or both).
- For Light Offenses: Reprimand, admonition with warning, or fine of ₱1,000.00 to ₱35,000.00.

• Sec. 38–41: Modifying Circumstances:

- Mitigating: First offense, good faith, full restitution, voluntary admission/remorse, advanced age/health, length of service.
- Aggravating: Prior disciplinary record, dishonest/selfish motive, vulnerable victim, refusal to acknowledge wrongful conduct, obstruction of proceedings.

Sections 42–53: Judicial Clemency Guidelines (Re: Ong Guidelines) • Requirements for Reinstatement / Judicial Clemency:

1. Lapse of at least 5 years from disbarment/suspension (unless extraordinary reasons exist);
2. Prima facie evidence of genuine remorse, reformation, and moral rehabilitation;
3. Restitution of all misappropriated funds or indemnification of victim;
4. Sworn testimonials from judges, IBP chapter officers, and community leaders;
5. Proof of engagement in productive, honest, and civic activities.

GENERAL PROVISIONS & EFFECTIVITY

Section 1. Retroactive Effect. The CPRA shall apply to all pending and future disciplinary cases against lawyers, unless the Supreme Court finds that its application would not be feasible or would work injustice, in which case the former procedure shall apply.

Section 2. Repealing Clause. The 1988 Code of Professional Responsibility, Chapters 1, 2, and 8 of the Rules of Court, and all prior administrative orders, rules, and circulars inconsistent with the CPRA are hereby repealed or modified accordingly.

Section 3. Effectivity. The CPRA took effect on May 29, 2023, following its publication in two newspapers of general circulation.